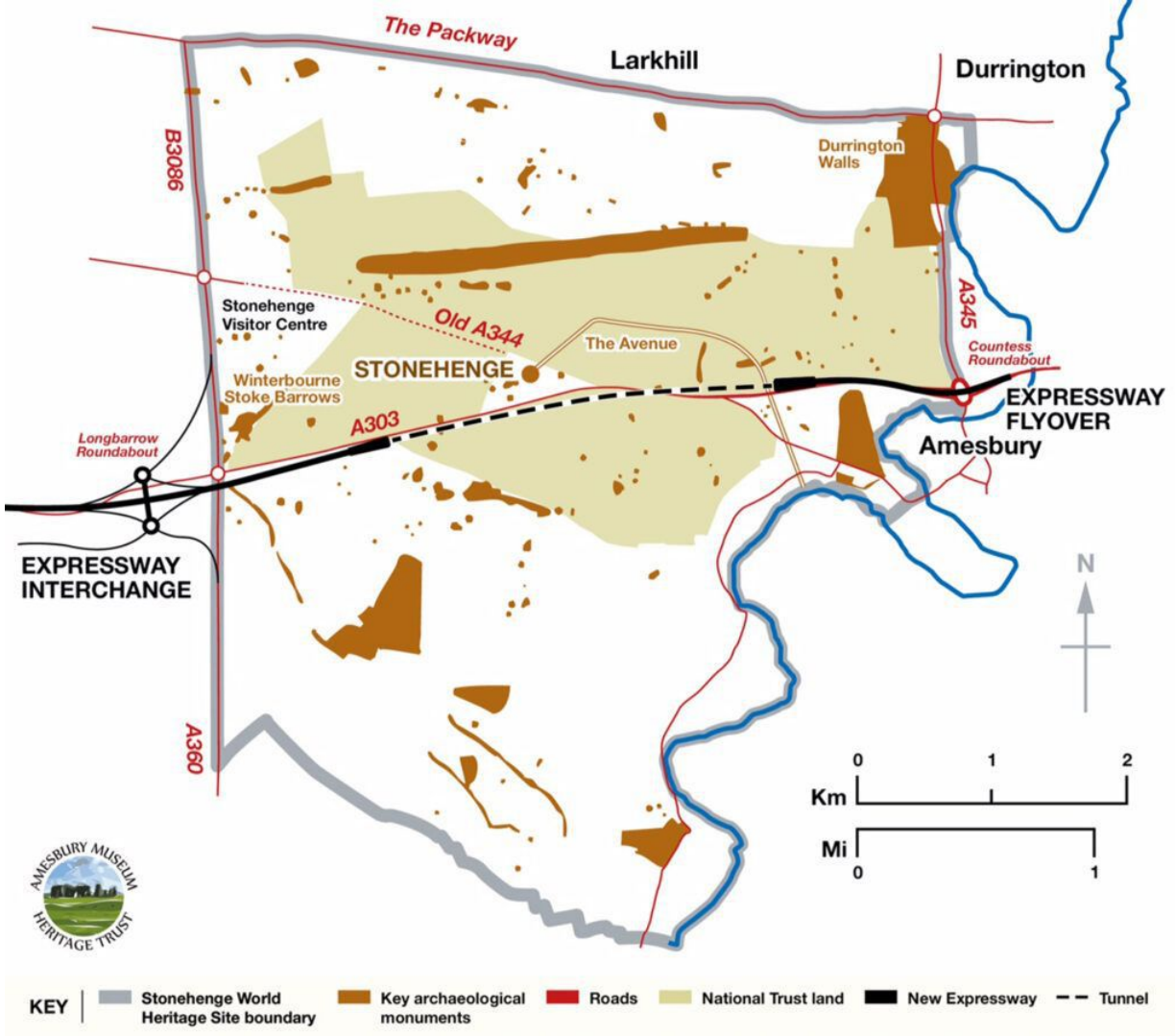
Judicial Review

Is it why we can’t build anything?


Stonehenge
P



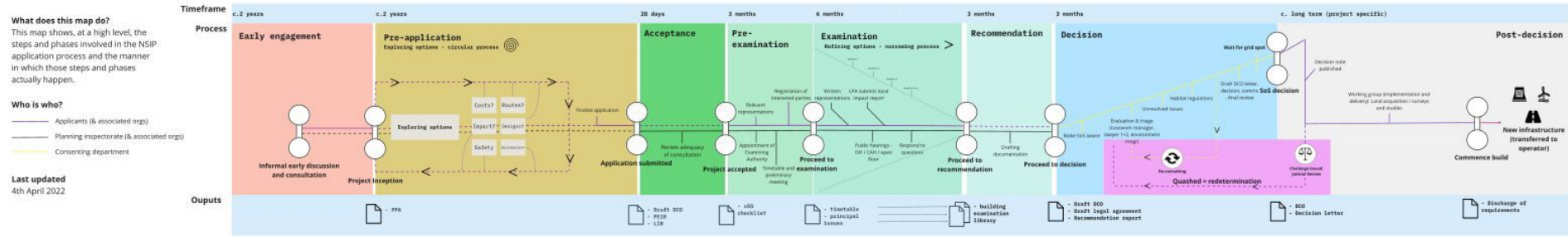

The Packway
Larkhill
Durrington
B3086
Durrington Walls
A345
Stonehenge Visitor Centre
Old A344
The Avenue
Countess Roundabout
STONEHENGE
Winterbourne Stoke Barrows
A303
EXPRESSWAY FLYOVER
Amesbury
Longbarrow Roundabout
EXPRESSWAY INTERCHANGE
A360
N
0 1 2
Km
Mi
0 1
AMESBURY MUSEUM
HERITAGE TRUST
KEY
Stonehenge World Heritage Site boundary
Key archaeological monuments
Roads
National Trust land
New Expressway
Tunnel


SAVE
Stonehenge World
Heritage Site
FROM
DESECRATION!
SAVE
STONEHENGE
NO
TUNNEL
WORLD HERITAGE SITE





The process for approving nationally significant infrastructure projects (NSIPs)



"Judicial review is the means of ensuring that public bodies act within the limits of their legal powers."

R (Save Stonehenge World Heritage Site) v Secretary of State for Transport [2021] EWHC 2161 (Admin) at [19] quoting from R (Rights: Community: Action) v Secretary of State for Housing, Communities and Local Government [2021] PTSR 553 at [6]



“A government minister jumping through lots of bureaucratic hoops.”



137 Development Consent Orders

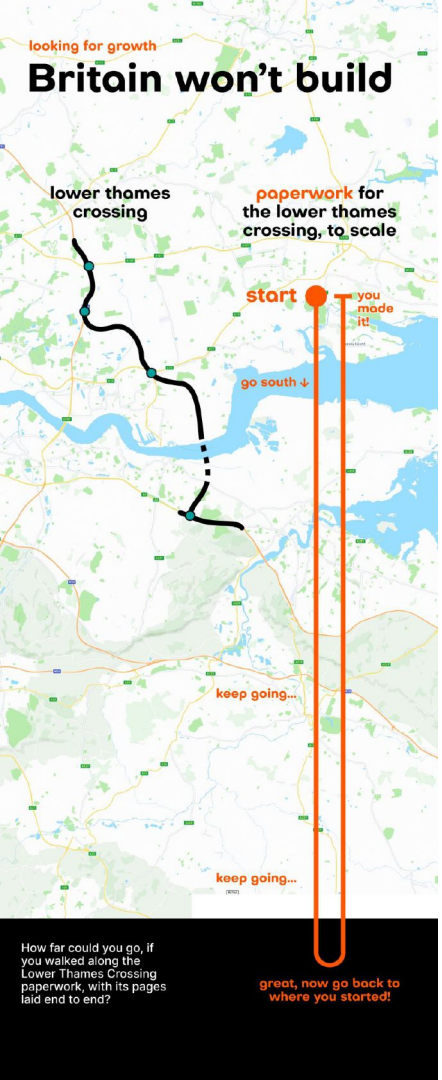
30 challenges opposing the DCO

4 succeeded

(2 overturned by the court, 2 by consent)


SAVE
Stonehenge World
Heritage Site
FROM
DESECRATION!
SAVE
STONEHENGE
NO
TUNNEL
WORLD HERITAGE SITE





With this funding confirmed, the North Somerset Council began work on its planning application.

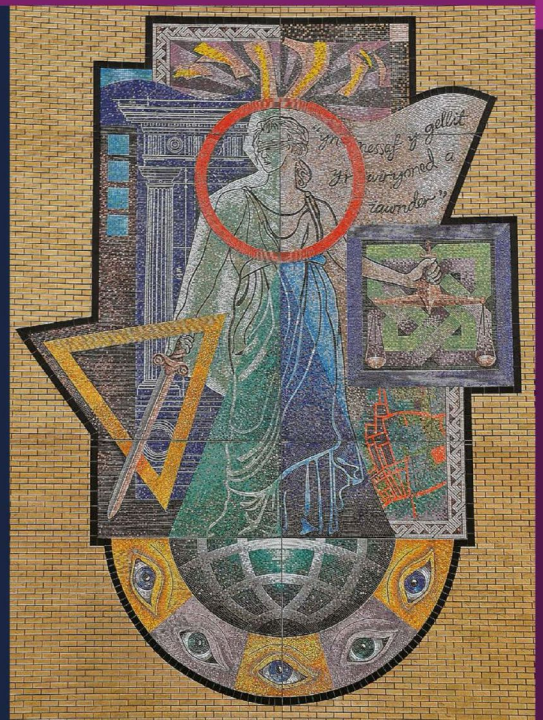
In total, the application and all the associated documents come out to 79,187 pages. If you printed that out, end to end, there's 14.6 miles of paperwork, more than 4 ½ times the length of the line that is to be reinstated.

Within those nearly 80,000 pages, there are 17,912 devoted to the environmental statement. That's 3.3 miles of paper trying to determine if rail transport is good for the environment. There's 1,174 pages devoted to bat technical appendices, 215 to newts, and 1,810 to vegetation management.

Government
Legal Department

JOYS

The Judge Over Your Shoulder



A GUIDE TO THE LEGAL ENVIRONMENT IN WHICH DECISIONS IN PUBLIC BODIES ARE MADE.



The image used on the cover of this guidance is taken from a mosaic mural on the wall of the Cardiff Magistrates Court. It depicts Lady Justice, blindfolded and carrying her scales and sword. She is positioned in front of a banner, saying (in Medieval Welsh) 'yn nessaf y gellit y'r (g)wiryoned a iawnder', which translates as "as near as may be to truth and justice". It comes from the Laws of Hywel Dda (Hywel the Good), 880–950, a codification of traditional Welsh law, considered highly enlightened for its time, with an emphasis on compassion rather than punishment, plenty of common sense, and recognition of the rights of women. © Copyright Lewis Clarke and licensed for reuse under this Creative Commons Licence

Early 2021 *Stonehenge (no 1)* case. Challenge succeeds.

2023 Planning permission granted (again)

Early 2024 *Stonehenge (no 2)* case. Challenge dismissed.

Mid 2024 Rachel Reeves cancels it.



Outcome: Good government.

Procedures should be enforced to the extent they enable this.

